

In T.1677/11 the board noted that the respondents had been aware of the closely related parallel appeal T.1760/11 of 16 November 2012, which had been decided by a board in an identical composition one week previously, right from the beginning of the current appeal proceedings. Nevertheless, it was only after an adverse decision in that case had been announced that the respondents raised their objections of suspected partiality in the case at issue. The board stated that regardless of whether the respondents had taken a specific procedural step in the current appeal proceedings, they had not submitted their objection immediately after having become aware of the reasons. It held that, in view of the fact that the objections raised were linked to both appeals, attendance at oral proceedings in T.1760/11 had to be regarded, in the factual context of the case now at issue, as a procedural step within the meaning of Art. 24(3) EPC. Thus, the objections under Art. 24(3) EPC were rejected as inadmissible.

In T.1020/06 of 15 May 2009 the board held that filing new requests after proceedings under Art. 24(4) EPC 1973 had been started did not render the partiality objection inadmissible.

In T.49/15 respondent 4 argued that the board's decision to admit the appellant's new main request had been a prerequisite for its partiality objection because it had only been then that the appellant had been favoured. The board rejected this argument: a party did not have to be adversely affected by a board decision before it could cite suspected partiality as a reason for objection.

In G.1/21 of 28 May 2021 the Enlarged Board considered that the appellant's third objection was filed inadmissibly late. The appellant had argued that because it was held in the first interlocutory decision that the Chairman of the Enlarged Board and a further member could be suspected of partiality, the members that participated in the panel with them would be "infected" by their biased views on the referral and therefore the suspicion of partiality also applied to them. The Enlarged Board stated that the risk of "infection" existed mainly before the filing of the first objection and the objection based on this circumstance could and should thus have been filed at that time. It was not credible that the risk of influencing other members only became a concern after the Enlarged Board had agreed with the appellant that its objection against the Chairman was justified. The Enlarged Board likewise held that Objections 2 and 4 were filed inadmissibly late. Both objections were based on circumstances that were known from the very start of the referral proceedings, and therefore could and should have been filed already at the time of filing the first objection at the latest.

3.3. Objection must be reasoned and substantiated

In T.1028/96 of 15 September 1999 (OJ 2000, 475) the board stated that, in addition to the two admissibility conditions prescribed in Art. 24(3) EPC, the EPC required, as a general rule, that objections be reasoned, i.e. indicated facts and arguments which were alleged to support such an objection. From this requirement it followed, firstly, that an objection based on purely subjective unreasonable doubts should be rejected as inadmissible. It also followed that if facts and arguments filed could not support the

objection of suspected partiality raised, the objection was likewise inadmissible (see also T.355/13).

In R.12/09 of 3 December 2009 the Enlarged Board of Appeal referred to T.1028/96 and also held that, when determining admissibility, it had to be established whether the objection had been duly substantiated. However, according to the Enlarged Board, this merely meant ascertaining whether it met the minimum standard for objective reasoning, and not whether that reasoning was also persuasive.

In T.1760/11 of 13 November 2012 the board noted that no reasons were given as to why the fact that the chairman had been employed at Cabinet Regimbeau over thirteen years previously should bias him against respondent 6 or any of the other parties, regardless of whether or not he had in fact acted for respondent 6 during his time there. Such vague and unsubstantiated allegations could not support an objection of suspected partiality

In T.1966/17, the board held that appellant 2's suspicion of partiality of all the board members simply because they did not agree with its submissions and because they expressed a different opinion could not support its allegation of partiality. To the contrary, such reasoning could not be considered to be based on the objective criteria relating to partiality as indicated in G.1/05 of 7 December 2006 (OJ 2007, 362, point 20 of the Reasons). For this reason alone, i.e. the lack of substantiation, the objection of partiality was found to be inadmissible.

In G.1/21 of 28 May 2021, the Enlarged Board, having decided in its interlocutory decision of 17 May 2021 that the Chairman of the Enlarged Board and another member of the composition determined by the Chairman should be replaced in application of Art.24(4) EPC, found the four objections raised by the appellant in the case in hand against members of the Enlarged Board in its new composition to be not admissible (see also in this chapter III.J.3.2). Objection 1 concerned a suspicion of partiality against two regular members of the panel who had previously been objected to. Unlike the initial objection, it was not based on their membership of the Presidium of the Boards of Appeal, but on their possible participation in a meeting with user representatives and their possible role in drafting and presenting the proposed amendment to the Rules of Procedure of the Boards of Appeal. The Enlarged Board found that this objection did not comply with the minimum standard for objective reasoning and substantiation. It was not based on facts ("we have reason to believe...") and the arguments were based on speculation. It was for the party who filed an objection to substantiate it with relevant facts and arguments.

The Enlarged Board also noted that Objections 1, 2 and 4 were not person specific and were very general; they could apply to any board member who took part in internal discussions or meetings with stakeholders (objection 1), all members of the Enlarged Board (objection 2), or all internal members of the Enlarged Board and the Boards of Appeal (objection 4). It found it questionable whether such general und unspecified objections could be seen as an objection of partiality within the meaning of Art.24 EPC. With regard to Objection 1, the Enlarged Board noted that merely limiting the objection to certain members was not sufficient to make the objection reasoned with respect to the members concerned, and could not plausibly establish that the objection was indeed

person-specific. With regard to objection 2, the fact that Art. 24 EPC could not adequately alleviate the unspecific and speculative concerns of the appellant was a strong indication that the mechanism of Art. 24 EPC was not meant for objections that were exclusively based on such general grounds. With regard to objection 4 – which was based on the fact that the re-appointment of members of the Boards of Appeal and the Enlarged Board was inter alia dependent on a positive opinion from the President of the Boards of Appeal, who was also the Chairman of the Enlarged Board – the Enlarged Board noted that the mechanism of Art. 24 EPC was not meant for objections that were exclusively based on such general, institutional concerns and was also not capable of alleviating these concerns. The use of Art. 24 EPC for the institutional concerns expressed by the appellant, when taken to the extreme, could potentially lead to a complete paralysis of the present proceedings.

3.4. Objection based on an obviously wrong understanding of the board's procedural obligations, the right to be heard and the principle of a fair trial

In T.355/13 the appellant suspected the board of partiality, inter alia because it had not provided a provisional opinion on decisive aspects of the case and because it had issued a summons to oral proceedings instead of remitting the case to the department of first instance. Referring to G.6/95 (OJ 1996, 649), the board stressed that there was no procedural obligation for the board to issue any provisional opinion, and that in inter partes proceedings it was not possible to automatically follow a party's request without giving the other parties the possibility to be heard on that request (in oral proceedings, if requested). The board considered the partiality objection inadmissible, as it was based on an obviously wrong interpretation of the board's procedural obligations, the right to be heard and the principle of a fair trial.

3.5. Repetition of a previous objection

In T.281/03 of 17 May 2006 the board found that the reason for the third partiality objection was essentially the same as that already decided by the replacement board in connection with the second partiality objection. Since the new objection had been made directly upon resumption of the oral proceedings after the respondent's previous objection to partiality had been refused, no new reason for objection could exist, so that the objection was simply a repetition of the previous objection and amounted to an abuse of the proceedings. Hence, the board decided that the request was inadmissible.

3.6. Dual function as members of the Enlarged Board and another board of appeal

In R.12/09 of 3 December 2009 the petitioner objected to the members of the Enlarged Board in petition for review proceedings, alleging that they inevitably had a personal interest owing to their capacity as members of a technical board or the Legal Board of Appeal. The Enlarged Board rejected this objection as inadmissible (see in this chapter III.J.6.2.1).

4. Suspected partiality of members of the departments of first instance

4.1. Competence to decide

According to the Enlarged Board of Appeal in G 5/91 (OJ 1992, 617) the practice that a partiality objection made at first instance is decided by the director of the department concerned cannot be considered illegal in view of the administrative character of the first-instance departments, which were subject to internal instructions by the President under Art. 10(2)(a) EPC (see also T 2509/11 and T 71/99). The Enlarged Board explained that under the EPC there was no legal basis for any separate appeal against an order of a director rejecting a partiality objection to a member of a department of first instance such as an opposition division. However, the composition of the opposition division could be challenged on appeal against the final or interlocutory decision of the division. If not all the members of an opposition division fulfilled the requirement of impartiality, there was a procedural violation which would normally render the decision void. The Enlarged Board of Appeal made it clear that it lay within the competence of the boards of appeal to decide whether this requirement had been fulfilled. This could also be seen in practice (cf. e.g. T 251/88, T 939/91, T 382/92, T 476/95, T 838/02, T 1349/10, T 568/17). Such consideration might take place of the boards' own motion or at the request of a party to the appeal proceedings.

In T 479/04 the board found that G 5/91 did not prohibit an opposition division from deciding itself on an allegation of partiality made against it. Moreover, it could not be inferred from G 5/91 that it was forbidden to decide on that matter together with the decision on the substance. The board concluded that the opposition division had not committed any procedural error by deciding itself on the allegation of partiality raised against it in the contested decision (see also T 1647/15).

In T 2475/17 the board noted that the boards had held multiple times that the EPC did not offer any legal basis that would allow them to act as a substitute for the EPO management and order a change to the composition of the decision-making department of first instance. Since the composition of the department of first instance was the responsibility of the EPO President, or rather his or her representatives, and not the department itself, Art. 111(1) EPC could not justify such an approach. It took the view that in cases in which the board had found that the right to be heard had been violated a board had the power to order a change in the department of first instance's composition only if it had arrived at the conclusion that the composition had been the actual cause of the violation of the right to be heard and that the violation could only be remedied by changing the composition, i.e. particularly if there was reason to suspect that one or more members of the department of first instance were partial. The board noted that any such order by a board was limited to requiring that the composition be changed so that the right of the parties to fair and lawful proceedings could be ensured. The scope of the change or which member of the examining or opposition division was replaced by whom remained the responsibility of those in whose remit the matter fell.

4.2. Remittal and rehearing of a case

In T 433/93 (OJ 1997, 509), the board noted in its headnote that following a substantial procedural violation in connection with a decision issued by a first instance department, at the request of a party, such decision has to be set aside. If a party has reasonable grounds to suspect that the same composition of opposition division would be tainted by the previous decision and therefore partial, at the request of that party the case should be reheard before a different composition of opposition division. The board considered that if the case were re-heard and re-decided by the same composition of opposition division, the members would first have to attempt to put out of their minds the result of their previous decision on the case. The board noted that the important point was not whether the file record showed any previous evidence of actual partiality by the members of the opposition division during the previous conduct of the case (see T 261/88 of 16 February 1993), or whether the present members of the opposition division would in fact be unprejudiced or impartial if they re-heard the case, but whether a party would have reasonable ground to suspect that they would not receive a fair hearing if the case was re-heard before the same composition of opposition division (see also T 628/95 of 13 May 1996, and T 611/01). In T 2362/08 the board also ordered a new composition of the opposition division after remittal, stating that after procedural irregularities in the first proceedings it was fundamental that the parties had no ground to suspect that they had not received a fair hearing in the further proceedings, as they might well do if the same opposition division were again to revoke the patent even after conducting the proceedings in an impeccable way.

In T 611/01 the board found a substantial procedural violation had occurred and remitted the case to the department of first instance for further prosecution to be conducted by a differently composed examining division (three new members). The board stated that this was typically done when there was a question of possible bias against a party. Although that was not the case here, a differently composed division could also be appropriate when a party had reasonable grounds for feeling it might not otherwise have a fair re-hearing (see T 433/93, OJ 1997, 509; see also T 628/95 of 13 May 1996). Even if the appellant had not requested a different composition the board stated there should not be any ground for dissatisfaction with the conduct of the further proceedings. This could be the case if the same examining division, even after impeccably conducted proceedings, refused the application again.

In T 1647/15 the board observed that whereas under normal circumstances a potential suspicion of bias concerning a member of an opposition division might be a strong indication for a remittal, this was not the case here where this suspicion did not affect the whole process of decision-making but only arose out of an uncontrolled outburst at the end of exceptionally long and intense oral proceedings. The contested decision was based on reasons which were extensively discussed in oral proceedings before said incident occurred. The board doubted that a remittal to the department of first instance, even in a different composition, would serve the interests of justice, as the remittal would cause an excessive delay in having the case finally decided. Accordingly, the board decided not to remit the case to the opposition division.